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he is one of
India's top
corporate
lawyers and the
go-to person

when some big deal or restructuring is planned. From the acquisition of Jaguar Land Rover by the Tatas, the L&T-Mindtree deal, the Cairn-Vedanta deal, SoftBank buying a stake in Ola or, more recently, the HDFC-HDFC Bank merger, Zia Mody, Co-founder and Managing Partner of AZB & Partners, has had a role to play in all of them. In an interview with *Business Today's* Global Business Editor **Udayan Mukherjee**, she reveals what attracted her to the legal field, her inspiration, and the business leader she looks up to. Edited excerpts:

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Q: Zia, let me begin by asking you if it is an exciting time to be a lawyer in India today, because there's so much going on—in the M&A landscape, with foreign direct investment pouring in, and even the much spoken about judicial activism in the public sphere. It must be exciting.

A: Look at my face, Udayan! Isn't it looking excited? I think it is one of the most fascinating periods for any young lawyer to be part of the entire development of corporate M&A, and of legal jurisprudence—either arguing in court or being a young corporate attorney sitting in on a mega M&A deal. The world has changed from about 20 years ago, where law was not necessarily the first calling of choice. But now, becoming a lawyer and hoping to aspire and reach the top of your game is very much a possibility and a dream that many youngsters want to dream. And therefore, we are seeing many more talented youngsters join the legal profession than we saw before. So, the simple answer to your question is a big yes.

Q: Actually, I don't remember the profession being such a major part and parcel of public discourse as it is today; all this talk about the judiciary actually being an offset to the

executive. Do you agree with the resulting allegations of judicial overreach, or do you support the view that the judiciary needs to become part of public life as it seems to have become in our country today?

A: There are times when there are troughs and peaks of what you call judicial activism. Personally, I welcome judicial activism. Yes, sometimes it can be overreaching, when you end up calling the government back on weekends and ask them to give you a school report. But other than that, it is what keeps all three branches [of a democracy] in check, reminding each that they are ultimately accountable for their behaviour. It is clear to me there are some things that would never have happened without judicial intervention. You take the writ of habeas corpus, the matter of undertrials being kept in prison, the situation in orphanages, so many public interest litigations which have led to change in legislation, better government behaviour, and a sense of wariness that if you overstep the moral line, the Supreme Court is there to haul you up and ask you to be accountable.

Q: You have worked with so many CEOs and managements over the years. Would you say Indian promoters innately respect the law or are they always trying to work around it, bend it, or tweak it in some way?

A: As always, there's no one easy answer. There are CEOs today who, over the last 10 years, have changed and recognised that trying to skirt the law or be over cute, or go too close to the edge, is not productive because when the regulator comes after you, then you

“Your sense of self-worth and confidence, and your ability to sleep at night without vexing about what you did during the day is far more important than winning that fight with the wrong means”

have to answer for all that cuteness. So, many CEOs today come and ask me—what is the right course of conduct, which is the least risky, maybe just a little risky, but they no longer ask for the outright risky path; they just don't want to know that. So, the risk appetite, if you like, has reduced, which is a change in the DNA of the culture of the Indian firm. These